

		Counsel for the Receiver is to submit proposed orders and is to give notice of these rulings.
2	30-2021-01214897 Veliz vs. Hyundai Motor America	Off Calendar
3	30-2021-01229674 Steichen vs. Joseph- Brown	A) Demurrers to Second Amended Complaint (“SAC”) Before the court are two demurrers to plaintiff David Steichen’s (“Plaintiff”) Second Amended Complaint (“SAC”). Though the demurrers were filed separately by defendants Bradley David Hatfield, M.D., (“Hatfield” individually) and Ahmed Badr, M.D. (“Defendants” with Hatfield for purposes of this ruling), they are both based upon the same argument that the allegations against Defendants are barred by the applicable statute of limitations. As such, the arguments and oppositions are essentially identical and the court will issue a combined ruling as to both Defendants’ demurrers. Pursuant to Civ. Proc. Code §§ 430.10(e) and 340.5, both demurrers are SUSTAINED without leave to amend. “A complaint showing on its face the cause of action is barred by the statute of limitations is subject to general demurrer.” (<i>Iverson, Yoakum, Papiano & Hatch v. Berwald</i> (1999) 76 Cal. App. 4th 990, 995.) “In an action for injury or death against a health care provider based upon such person's alleged professional negligence, the time for the commencement of action shall be three years after the date of injury or one year after the plaintiff discovers, or through the use of reasonable diligence should have discovered, the injury, whichever occurs first. . .” (Civ. Proc. Code § 340.5.) Plaintiff received emergency surgery to remove/treat purported colon cancer on 09/11/20. (SAC ¶ 2.) Plaintiff became aware of the misdiagnosis of colon cancer in March 2021. (SAC ¶ 10.) Plaintiff therefore had one-year from March 2021 (the lesser of the two limitation periods) to file his complaint in this action. Plaintiff’s initial complaint was timely filed on 11/02/21. Plaintiff added Defendants to this action on 02/08/23. (ROA #118.)

		The original complaint importantly did not contain any allegations as to Defendants, nor did it contain any DOE allegations. Defendants were only added to this lawsuit following an unopposed motion for leave amend to add <i>new</i> defendants to this action that was made pursuant to Code Civ. Proc. §§ 473 and 576. That motion was filed on 01/18/23. (ROA #91.) Plaintiff was granted leave and filed his First Amended Complaint on 02/08/23. Both the motion and the amended complaint were filed after the limitation period had expired. Plaintiff’s failure to add DOE allegations in the original complaint means that Defendants were not DOE defendants, and instead could only be added as <i>new</i> defendants. (Civ. Proc. Code § 474.) As such, their addition does not relate back to the time of the filing of the original complaint. (<i>Fireman's Fund Ins. Co. v. Sparks Constr., Inc.</i> (2004) 114 Cal. App. 4th 1135, 1143-44; <i>Ingram v. Superior Ct.</i> (1979) 98 Cal. App. 3d 483, 492.) “The effect of the proposed amendment thus would be to name a new party without justifiable cause after the statute has run. The straightforward rule is that amendment after the statute of limitations has run will not be permitted when the result is the addition of a party who, up to the time of the proposed amendment, was neither a named nor a fictitiously designated party to the proceeding.” (<i>Id.</i>, at 491-92.) No limitation period argument was made at the time of the motion to amend, which again, was unopposed. Although Plaintiff attempts to claim delayed discovery tolled the statute of limitations period, that is not the case. “Our Supreme Court has often discussed the one-year rule's requirement of discovery of the negligent cause of injury. When a plaintiff has information which would put a reasonable person on inquiry, when a plaintiff's “reasonably founded suspicions [have been] aroused” and the plaintiff has “become alerted to the necessity for investigation and pursuit of her remedies,” the one-year period commences. “Possession of 'presumptive' as well as 'actual' knowledge will commence the running of the statute.” [Citations.] The plaintiff's ignorance of the identity of the defendant wrongdoer does not toll the one-year period. [Citation.][¶] “Under the discovery rule, the statute of limitations begins to run when the plaintiff suspects or should suspect that her injury was caused by wrongdoing, that someone has done
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		something wrong to her. ... A plaintiff need not be aware of the specific 'facts' necessary to establish the claim [such as failure to test, failure to warn, failure to diagnose]; that is a process contemplated by pretrial discovery. Once the plaintiff has a suspicion of wrongdoing, and therefore an incentive to sue, she must decide whether to file suit or sit on her rights. So long as a suspicion exists, it is clear that the plaintiff must go find the facts; she cannot wait for the facts to find her.” (Rose v. Fife (1989) 207 Cal. App. 3d 760, 768–69.) As the statute of limitation ran out in March 2022, and as the FAC was not filed until 02/08/23, the addition of Defendants was after the limitation period. The demurrers are therefore proper. Finally, as Plaintiff has not shown with a reasonably probability that he can plead around the statute of limitations, leave to amend is not granted. (<i>San Mateo Union High Sch. Dist. v. Cnty. of San Mateo</i> (2013) 213 Cal. App. 4th 418, 441.) Both demurrers are, therefore, sustained. B) Motion to Strike Hatfield’s Motion to Strike is MOOT. Plaintiff filed a notice of non-opposition/stipulation indicating he agreed to strike out the language at issues in the SAC. (ROA #231.) Moving parties are to give notice of these rulings and to file proposed orders with the court.
4	30-2021-01233370 Nguyen vs. National General Premier Insurance Company	Off Calendar
5	30-2022-01242882 Taylor vs. General Motors LLC	Defendant General Motors LLC’s (“Defendant”) Motion for Summary Judgment or, alternative, for Summary Adjudication (“Motion”) is DENIED without prejudice. All of the evidence produced in support of this Motion was attached to the declaration of Cameron Major (“Major”). The only “authentication” Major provides regarding each of the eight documents produced in support of the Motion was that he had “personal knowledge of the facts set forth below and,